

24STCV08400 24STCV08400

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-17

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Case Number: 24STCV08400 Hearing Date: August 17, 2026 Dept: 415

TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

August

17, 2026

CASE NUMBER

24STCV08400

MOTION

Motion

for Summary Judgment

MOVING PARTIES

Defendant

Dallas Martin

OPPOSING PARTY

Plaintiff

Brooklyn Bridges

BACKGROUND

Plaintiff Brooklyn

Bridges ("Plaintiff") brought the instant action against Defendant Dallas

Maritn ("Defendant"), alleging he sexually assaulted her. Defendant moves for summary judgment on

Plaintiff's complaint. Plaintiff opposes

the motion.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT

"[T]he party moving for summary judgment bears the

burden of persuasion that there is no triable issue of material fact and that

he is entitled to judgment as a matter of law[.] There is a triable issue of

material fact if, and only if, the evidence would allow a reasonable trier of

fact to find the underlying fact in favor of the party opposing the motion in

accordance with the applicable standard of proof." (Aguilar v.

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party

moving for summary judgment bears an initial burden of production to make a

prima facie showing of the nonexistence of any triable issue of material fact;

if he carries his burden of production, he causes a shift, and the opposing

party is then subjected to a burden of production of his

own to make a prima facie showing of the existence of a triable issue of

material fact." (Ibid.)

DISCUSSION

In support of his motion, Defendant has presented

Plaintiff's deposition testimony. At

deposition, Plaintiff testified Defendant sexually assaulted her on three

occasions. (Compendium of Evidence in

Support of Defendant's Motion for Summary Judgment, Exhibit 5, pp. 20-21, 24-26,

55-56.) Defendant also provides a police

report Plaintiff made to the Burbank Police Department, which reflects

Plaintiff's report of Defendant having raped her. (Id., Exhibit 6.) Ordinarily, the contents of a police report

would be considered hearsay and possibly not admissible evidence. (See

Sambrano v. City of San Diego (2001) 94 Cal.App.4th 225, 237 [police

reports may properly be subject to objections, though in some cases

admissibility can be established or an alternative official records theory of admissibility might apply].) Neither party has objected on any grounds concerning the Court's consideration of the subject police report. The evidence Defendant himself has presented, without more, raises triable issues of material fact as to whether Plaintiff can prevail on her claims against Defendant. Defendant's characterization of Plaintiff's testimony as conclusory and evasive is immaterial.

Simply put, Defendant cannot obtain summary judgment on the basis Defendant believes Plaintiff lacks credibility. "The motion must stand self-sufficient and cannot succeed because the opposition is weak. ¶ A court generally cannot resolve questions about a declarant's credibility in a summary judgment proceeding unless admissions against interest have been made which justify disregard of any dissimulation." (AARTS Productions, Inc. v. Crocker National Bank (1986) 179 Cal.App.3d 1061, 1064-1065.) Moreover, "[t]he trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility. Nor may the trial court grant summary judgment for a defendant based simply on its opinion that plaintiff's claims are 'implausible,' if a reasonable factfinder could find for plaintiff on the evidence presented." Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 84, internal citations omitted.)

Thus, Defendant cannot obtain summary judgment because Defendant contends Plaintiff's evidence is weaker than evidence Defendant sets forth. Even though that may be the case, Plaintiff is not precluded from having the trier of fact weigh evidence such as the "sworn testimony, medical records, police records, contemporaneous communications, discovery responses identifying witnesses and treating providers, electronic evidence, and other documentary evidence" noted by Plaintiff, as this Court cannot say Plaintiff's case is not meritorious, and Defendant is entitled to judgment, as a matter of law.

As Plaintiff's deposition testimony alone reflects there are triable issues of material fact which defeat Defendant's motion, the Court need not consider the documents Defendant lodged provisionally under seal. As such, the Court declines to rule on the motion to seal and returns the lodged documents to Defendant. (See Cal. Rules of Court, rule 2.551.)

CONCLUSION AND ORDER

As Defendant's own evidence reflects triable issues of material fact exist with respect to Plaintiff's claims, Defendant's motion is denied.

Defendant is ordered to give notice of the Court's ruling and to file a proof of service of same.